

Tensions between the Construction of Central Park and the Displacement of Seneca Village

Word Count: 1317

Background

According to Britannica, Central Park in this research refers to an urban park of 840 acres that extends between 59th and 110th Streets and 5th and 8th Avenues in Manhattan, New York City (Britannica 2026). Part of this area used to be Seneca Village. Seneca Village, according to Britannica, was New York City's first free Black community in what is now the area between West 82nd and 89th Streets and 7th and 8th Avenues (Britannica 2026).

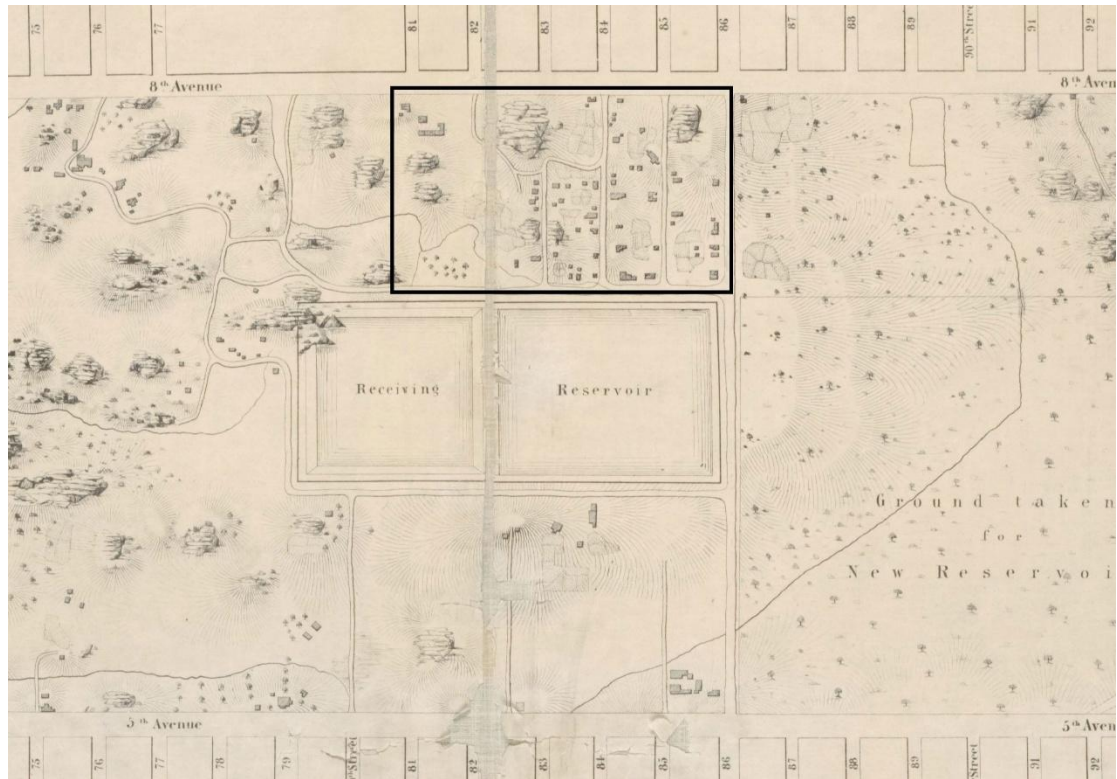


Fig.1| A Topographical Survey Made by Egbert L. Viele (Viele 1857)

In this context, the first proposal to build a park was in an article titled “A New Park” (Bryant 1844) in the New York Evening Post by William Cullen Bryant, a poet and editor who suggested that this would improve public health and provide recreation. Meanwhile, in 1858, Frederick Law Olmsted and Calvert Vaux’s Greensward Plan for the design of Central Park was chosen.

The Central Park’s design is believed to reflect civil rights. However, the park required the displacement of Seneca Village. This created some tensions: the government used legal mechanisms to provide broad public welfare; however, this process dismantled a minority community's property and voting rights. This essay will analyze the tensions here.

The Ideals Beneath Central Park

Central Park's design is connected to ideal of civil rights, while civil rights include "general welfares and secure of liberty" according to the Preamble of the U.S. Constitution.

In 1870, the first superintendent and designer of Central Park Olmsted delivered a speech titled "Public Parks and the Enlargement of Towns" (Olmsted 1870). He explained his ideals and motives for building this park, claiming that "It is the great purpose of the Park to supply to the hundreds of thousands of tired workers..." Nicholson's study further researches this connection. Nicholson connects Olmsted's building plan with national democracy and liberty. She claims that Olmsted believed this park denoted "an achievement that could be reached without using enslaved labor." Olmsted suggested that Central Park responded to the rights of New York City laborers to have a place to rest in summer and for citizens to benefit from social welfare.

The ideals of promoting the general welfare and securing the blessings of liberty are not only mentioned in Olmsted's speech but also reflected in its design. First, Olmsted suggested that the park would allow citizens to enjoy fresh air. This is studied by Jones's journal paper in public health area (Jones 2022), which illustrates how the open landscape of Central Park "provided respiratory services that tenement housing lacked" by comparing historical health geography and metabolic data among New York City citizens. However, Jones's sample size seems unable to distinguish correlation and causation. His study didn't account other factors such as economy.

Second, Taylor's article in the Journal of Leisure Research focuses on the connection between Central Park and leisure behavior in nineteenth-century America across different social classes, particularly factory workers (Taylor 1999). Taylor's argument is based on the Compensatory Theory of Leisure, which states that "leisure is a necessary reaction to compensate for the rigors, monotony, and brutality of the job." Taylor then claims that Central Park provided such a place to compensate. Though Taylor's theory seems to be valid, his sample of "counts of 400 jobless men resting on the Common in a single afternoon during the 1893 recession" seems insufficient to generalize a valid conclusion.

General welfare presumably includes sanitary living conditions. Nathan Sander from University of Chicago (Sander 2023) examines original archives on death rates and public health reports and refers to Olmsted's personal writings in his thesis. Sander concludes that death rates in tenement districts were lower due to the establishment of Central Park and that air conditions improved according to health reports. However, Sander's study didn't discuss other key factors' roles. For example, the increase in the economic section may correlate with better living conditions on average.

Action on Seneca Village

To clear sites for Central Park, the city exercised “Eminent Domain”. Eminent domain, as part of the Fifth Amendment (New York State 1821), enables the government to seize private property for public use without the owner’s consent in some situations. The New York State Supreme Court confirmed the displacement in 1856. The court’s reasoning prioritized the "public necessity" of the park over individual land claims. On October 1, 1857, all residents were swept out.

The Tensions

Tension A: Unjust Compensation vs. Property Rights

The civil right to economic liberty is central to fair property laws. The Fifth Amendment states that “private property shall not be taken for public use without just compensation.” Whether this compensation just raise tensions. Wall et al.’s journal in a peer-reviewed archeology journal reveals that the “fair market price” evaluated by the government is disagreed by some residents of Seneca Village (Wall et al. 2008). Wall et al. seem to suggest that it was the government underestimated lot prices for certain purposes instead of the Seneca Villagers petitioned to increase personal, extra benefits. Using 1855 State Census records and tax registries, Wall et al. imply a massive gap: the government evaluated lots at \$2,300, whereas resident Andrew Williams petitioned for \$4,000, while surrounding blocks were typically above \$4,000. Wall et al.’s claim, if accurate, appears to contrast with the law of “Just Compensation,” therefore creating tension with general property right.

Furthermore, this lost in property right may lead to lost in voting right. According to the New York Constitution of 1821, people of color were required to own at least \$250 in property to have the right to vote. Wall et al., using census data and tax registries, suggest that this unfair compensation may make many residents fall below this threshold and thus lose voting rights. However, this tension needs further research. It remains vague whether this supposed loss in property rights cause further loss in voting rights.

Tension B: Media Bias vs. Right to Reputation

Seneca Village seems to have a negative image among the NYC public in 1950s; this is evident in the contemporary media. Contemporary media narratives characterized Seneca Village as “a transient shantytown” (New-York Daily Times 1856). Similarly, the New York Herald (New York Herald 1856) described the residents as “squatters” and “paupers” who hindered the city’s progress. Such negative images created by mainstream media seem to benefit displacement progress and Central Park. This raises suspicion about the NYC government’s role behind these media portrayals.



Figure 3.2: A field photograph showing the southeast corner of the foundation wall of the Wilson house, exposed in shovel test 17.

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Figure 3.14: The roasting pan (S 52) and tea kettle (S 53) from the Wilson house after conservation.

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Figure 2.9: The light blue transfer-printed teapot found atop the buried A Horizon in TCs D and K.

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Fig.3| Refined ceramics and stone foundations from the 2011 Seneca Village Excavation (Wall et al. 2011)

Wall et al. disagree with those media narratives. The excavation found permanent stone foundations and refined domestic ceramics. Similar findings appear in the 2011 excavation report made by the Institute for the Exploration of Seneca Village History, showing that these refined materials were present before displacement (Wall et al. 2018). These archaeological results contrast with media narratives that portrayed the village as poor and dirty. According to Wall et al., such narratives may have exaggerated conditions to pressure the residents to stop petition and accept given compensation. Those media narratives appear to violate people's rights to reputation. However, it is important to notice that several refined pieces found in excavation may not represent the overall material conditions in Seneca Village.

V. Counterargument

Given that residents often try to maximize benefit in displacement events, the exact extents of the two proposed tensions seem complex. According to Professor Fennell's article centering on Eminent Domain in the University of Pennsylvania Law Review, the "Fair Market Value" in "Eminent Domain" is hardly satisfied due to "Surplus from trade" and "Subjective Premium." Namely, people seek more compensation via negotiations and petitions, and their subjective evaluated prices include their own feelings: memory, neighborhood, etc., which are hard to be evaluated fairly (Fennell 2005). This provides an alternative resolution to the tensions

in Seneca Village's displacement. The NYC government follows a legal procedure with a justified purpose of general welfare, while residents petition for personal benefit.

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